

02:00 PM

24-CLJ-07743

BARCLAYS BANK DELAWARE VS. ITZHAK BENHARUSH

LINE 5

BARCLAYS BANK DELAWARE
ITZHAK BENHARUSH

ADAM KIDD
PRO SE

PLAINTIFF'S MOTION TO DEEM REQUESTS FOR ADMISSIONS AS ADMITTED AND FOR SANCTIONS

TENTATIVE RULING:

Plaintiff's request for judicial notice is denied, assuming that Judicial Notice is required for the Court to consider the contents of its file in the instant case. Plaintiff has not specified the part of the file sought to be judicially noticed as required by California Rules of Court, rule 3.1306(c)(1). But it is academic as it does not appear that it is relying on anything in the Court file for this motion.

The unopposed motion is GRANTED. The genuineness of any documents and the truth of any matters in plaintiff's Requests for Admission, Set One, are deemed admitted. See Declaration of Eric Marquez Exhibit A. The request for sanctions is also granted. Defendant shall pay Plaintiff \$60 within 30 days.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-07999

BRIAN TAUSSIG, ET AL. VS. GEORGE H. OGATA, ET AL.

LINE 6

BRIAN TAUSSIG
ROBERTA SHONG

JAIME C. UZIEL
PRO SE

DEFENDANT'S MOTION TO EXPUNGE LIS PENDENS

TENTATIVE RULING:

Defendant's motion to expunge *lis pendens* is taken off calendar and the Court sets an Order to Show Cause Hearing for September 21, 2026 at 2:00 p.m. in Department 11 for Defendant to show it has an attorney representing it or to show cause why its answer should not be stricken and default entered in favor of Plaintiffs and against Defendant. Defendant shall either file an appearance by an attorney to represent it no later than seven court days before the hearing or file a response brief within the same deadline showing why its answer should not be stricken and default entered. Plaintiffs may, but is not required, file a brief on or before five court days before the hearing.

On October 10, 2025 Plaintiffs filed a verified complaint with a single cause of action for quiet title naming as Defendants the Ogata Family Trust and its successor trustee. The Trust is the owner of the property in dispute. Complaint Ex. B. There is no evidence that Roberta Shong has an interest in the property beyond that of a Trustee or as a beneficiary of the Trust.

On April 6, 2026 Roberta Shong filed this motion, which appears by implication to be on behalf of the Trust to expunge a *lis pendens* recorded by Plaintiffs.

However, "[n]o person shall practice law in California unless the person is an active licensee of the State Bar." Bus. & Prof. Code, § 6125. A trustee, who is not an attorney, generally may not represent the trust in a civil action because it constitutes the unauthorized practice of law. *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545. As such, it appears Defendant is required to obtain counsel. If Defendant disagrees, Defendant is to present authority (on the time-frame provided above) to support that she may continue to proceed in propria persona in her capacity as trustee.

The Court also notes a concern that Roberta Shong's fee waiver was improvidently granted either because an entity cannot receive a fee waiver or because Roberta Shong failed to offer evidence of the entity's assets rather than her own. The Court will revisit that issue, as necessary, depending on the resolution of the Order to Show Cause.

Finally, the Court notes that it was inclined to deny the Motion because Plaintiffs have met their burden of showing a likelihood of prevailing on their real property claim, but takes the Motion off calendar to give the Defendant an opportunity to obtain counsel that can lawfully file a motion, if appropriate.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.
